



Notification Waiver Determination

Morgan Stanley – Amber

Acquisition	1GT Europe (Lux) S.à r.l. (1GT) applied for a notification waiver in respect of its proposed subscription for newly authorised and issued shares in Amber Energy Holdings Limited (Amber UK) and purchase of existing shares from certain current shareholders in Amber Holding Corporation Pty Ltd (Amber Australia), as described in the documents provided as part of the application (the Acquisition). Once established, Amber UK will hold the entire issued share capital of Amber Australia and 1GT will hold a minority interest in Amber UK.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	2 September 2026

Parties to the Acquisition	The acquirer, 1GT, is a global climate-focused private equity growth fund managed by Morgan Stanley Investment Management. Its core mission is to invest in private companies in North America and Europe that collectively aim to avoid or remove one gigaton of carbon dioxide-equivalent emissions by 2050. Amber Australia, via its subsidiaries, operates a cloud-based demand-flexibility software platform and is a licensed electricity retailer in Australia. Amber Australia and its subsidiaries supply subscription-based energy retail services, automated battery and electric vehicle charging optimisation technology, and related devices to Australian households under the 'Amber' brand. Its core product combines dynamic, wholesale-linked electricity price passthrough with software that provides real-time price information and can automatically charge and discharge a customer's home battery, solar system or electric vehicle in response to real-time price signals. Amber Australia and its subsidiaries license its technology to utility partners internationally.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between 1GT (and its connected entities) and Amber Australia in the retail supply

	of electricity, as well as demand-flexibility software or related goods and services in Australia b. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act